

An Act

ENROLLED SENATE
BILL NO. 504

By: Hamilton and Mann of the
Senate

and

Miller, Dollens, McCane,
Deck, Menz, and Fugate of
the House

An Act relating to marriage; amending 43 O.S. 2021,
Section 3, which relates to eligibility to marry;
imposing age restriction on eligibility to marry;
removing exceptions; updating statutory reference;
and providing an effective date.

SUBJECT: Eligibility to marry

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43 O.S. 2021, Section 3, is
amended to read as follows:

Section 3. A. Any unmarried person who is at least eighteen
(18) years of age and not otherwise disqualified is capable of
contracting and consenting to marriage with a person of the opposite
sex.

B. ~~1. Except as otherwise provided by this subsection, no
person under the age of eighteen (18) years shall enter into the
marriage relation, nor shall any license issue therefor, except:~~

~~a. upon the consent and authority expressly given by the
parent or guardian of such underage applicant in the
presence of the authority issuing such license,~~

- ~~b. upon the written consent of the parent or guardian of such underage applicant executed and acknowledged in person before a judge of the district court or the court clerk of any county within the State of Oklahoma,~~
- ~~c. if the parent or guardian resides outside of the State of Oklahoma, upon the written consent of the parent or guardian executed before a judge or clerk of a court of record. The executed foreign consent shall be duly authenticated in the same manner as proof of documents from foreign jurisdictions,~~
- ~~d. if the certificate of a duly licensed medical doctor or osteopath, acknowledged in the manner provided by law for the acknowledgment of deeds, and stating that such parent or guardian is unable by reason of health or incapacity to be present in person, is presented to such licensing authority, upon the written consent of the parent or guardian, acknowledged in the same manner as the accompanying medical certificate,~~
- ~~e. if the parent or guardian is on active duty with the Armed Forces of the United States, upon the written permission of the parent or guardian, acknowledged in the manner provided by law for acknowledgment of deeds by military personnel authorized to administer oaths. Such permission shall be presented to the licensing authority, accompanied by a certificate executed by a commissioned officer in command of the applicant, to the effect that the parent or guardian is on active duty in the Armed Forces of the United States, or~~
- ~~f. upon affidavit of three (3) reputable persons stating that both parents of the minor are deceased, or mentally incompetent, or their whereabouts are unknown to the minor, and that no guardian has theretofore been appointed for the minor. The judge of the district court issuing the license may in his or her discretion consent to the marriage in the same manner~~

~~as in all cases in which consent may be given by a parent or guardian.~~

~~2. Every person under the age of sixteen (16) years is expressly forbidden and prohibited from entering into the marriage relation except when authorized by the court:~~

- ~~a. in settlement of a suit for seduction or paternity, or~~
- ~~b. if the unmarried female is pregnant, or has given birth to an illegitimate child and at least one parent of each minor, or the guardian or custodian of such child, is present before the court and has an opportunity to present evidence in the event such parent, guardian, or custodian objects to the issuance of a marriage license. If they are not present the parent, guardian, or custodian may be given notice of the hearing at the discretion of the court.~~

~~3. A parent or a guardian of any child under the age of eighteen (18) years who is in the custody of the Department of Human Services or the Department of Juvenile Justice shall not be eligible to consent to the marriage of such minor child as required by the provisions of this subsection.~~

~~4. Any certificate or written permission required by this subsection shall be retained by the official issuing the marriage license.~~

~~C. No marriage may be authorized when such marriage would be incestuous under this chapter title.~~

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____